



File No.: EXP202309575 (PS/00440/2023)

RESOLUTION FOR ARCHIVING OF PROCEEDINGS DUE TO EXPIRATION OF THE PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: On 05/07/23, Mr. A.A.A., on behalf of and with accredited representation of Ms. B.B.B. (hereinafter, the complainant), filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against Ms. C.C.C., with NIF: ***NIF.1 (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, concerning the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR) and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD). In the complaint document, it is indicated that on 26/06/23, an event occurred (...), which was recorded and published without consent and without pixelating the images, on the Facebook profile, "****PAGE D.D.D.", accessible at the address: ***URL.1, where it can be seen "...". Along with the complaint document, the following documentation is submitted:

- Copy of the video lasting 1:10 minutes, where it can be seen (...).
- Screenshot of the Facebook page named "****PAGE D.D.D.", where a frame from the indicated video appears, with the title "(...)" ***URL.2.
- Screenshot of the identifying data of the Facebook profile: "****PAGE D.D.D.": (...) is responsible for this page. Phone ***PHONE.1. Email, (...), website: ***URL.2.
- Copy of the document from the public entity "Red.es" indicating that the holder of the domain "(...)" is Ms. C.C.C.
- Copy of the document from the public entity "Red.es" indicating that the holder of the domain "(...)" is Ms. C.C.C.

SECOND: On 14/07/23, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the complaint to the respondent for analysis and to report back within one month on the matters raised in the complaint document.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 28/07/23, as evidenced by the acknowledgment of receipt in the file.

THIRD: On 14/08/23, this Agency received a response to the forwarding, in which the following considerations are highlighted:

- That the cited video has NOT been found on the Facebook page "****PAGE D.D.D.", screenshots are attached in ANNEX 1.
- Screenshots are provided with records of archived and deleted publications where it is observed that no publication of the page has been modified.
- A search has been conducted on other social networks with the same account name (Instagram and Twitter) and it has not been located on any of them.
- The link provided by the complainant is incorrect and the social network responds with a message of "It may be due to a technical error."

FOURTH: On 21/09/23, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: On 25/10/23, this Agency accessed the indicated address where the video was said to be posted, documenting the response given by the social network: "This page is not available at this time. It may be due to a technical error we are trying to fix."

SIXTH: On 17/11/23, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against Ms. C.C.C., in accordance with the provisions of Articles 63 and 64 of

the LPACAP, for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5.a) of the same Regulation, and qualified as very serious in Article 72.1.a) of the LOPDGDD.

In the opening agreement, it was determined that the sanction that could correspond, based on the existing evidence at the time of the opening and without prejudice to what results from the instruction, would amount to a total of 10,000 euros (ten thousand euros). Furthermore, it was warned that the alleged infringements, if confirmed, could lead to the imposition of measures, according to the aforementioned Article 58.2 d) of the GDPR.

SEVENTH: After the notification of the aforementioned initiation agreement in accordance with the rules established in the LPACAP, the respondent submitted a written statement in which they request the archiving of the procedure.

Regarding the facts that motivated the opening of the procedure, the respondent reiterates the indications expressed in their response to the forwarding.

EIGHTH: On 24/01/24, a proposal for resolution was made in the sense that the Director of the AEPD sanction the respondent for violation of the provisions of Article 5.1.c) of the GDPR, classified in Article 83.5.a) of the same Regulation, and qualified as very serious in Article 72.1.a) of the LOPDGDD.

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Regulation, and classified for the purposes of prescription as very serious under article 72.1.a) of the LOPDGDD, with a penalty of 10,000 euros (ten thousand euros).

NINTH: On 16/02/24, the responding party submits a written statement of allegations to the proposed resolution in which, among other matters, it states the following:

First: Firstly, this party must express its strong disagreement with the notified resolution, as all and every piece of evidence provided by this party of its innocence has been omitted.

And we cannot overlook that in any sanctioning procedure, the principle of presumption of innocence prevails, whereby every person is innocent until their guilt is proven. However, in the present procedure, given its apparently revenue-raising purpose, the proposed resolution is based more on indications (letter a of section 'II) than on proper evidence. The agency to which I am addressing states that "there are rational indications that would allow attributing to the respondent the commission of the infringements of personal data protection regulations." But what about the evidence provided by this party where an IT expert indicates that the video in question has never been on the Facebook page of the appearing party? Is a mere indication worth more than expert evidence?

In the very proven facts of the contested resolution, it is established, in view of a series of Facebook screenshots, that the video has been uploaded to the Facebook page of the appearing party, only to later state that, having attempted access by the Agency, it was not possible. The agency to which I am addressing seeks a devilish proof, such as demonstrating that it has not been uploaded to the Facebook platform of the appearing party, when the truth is that lacking evidence, it seeks to sanction the same. Despite the fact that the accuser must prove, the truth is that this party in its previous written allegations provides an expert report where it is evidenced that the video in question has never been on that Facebook page.

As Document No. ONE, this party submits an expert report that records the ease with which "screenshots" can be manipulated, indicating that within the administration panel of the Facebook page "****PAGE D.D.D." it is not detected that such content has been uploaded.

If a document signed by an IT expert is not sufficient to demonstrate that such content has not been uploaded to the Facebook page of the appearing party, we encourage the Agency to indicate what would be necessary, given that simple screenshots have served for the accusation, but the expert report provided is not sufficient for the defense.

Second.- Regarding point b) of section II, this party must request that the Agency explain better, given that initially it was stated that the face of the woman was appreciated, only to later respond that any image of a person where they are directly identified or made indirectly identifiable is sufficient. We

cannot overlook that we are facing supposed screenshots that are supposedly false.

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where with much imagination we can recognize someone, (...). The expert report itself indicates that the woman is not identifiable. So, what information does this agency take into account to indicate that she is identifiable?

Therefore, although this party maintains that at no time has the video been posted on the page ("of the Facebook of the appearing party, the truth is that we must emphasize that it would not violate the right to data protection, given that the woman is not recognizable. It seems that the video was recorded with a low-quality mobile phone, so the face is not clearly visible. There is also no information that could identify this woman, which is why we do not understand why this agency continues to maintain this position.

Now, we insist, this content has not been posted on the Facebook page "****PAGE D.D.D.", since as indicated in the expert report provided, a "screenshot" can be easily altered.

Third.- It is necessary to point out that in application of the principle of presumption of innocence and the principle in dubio pro reo, it is the Agency itself that must prove that the images were captured by the appearing party.

Moreover, it seems somewhat impossible for them to have been obtained by her when her habitual residence is in another Autonomous Community, (...) and she would hardly be found in the city where the images were supposedly captured.

Fourth.- Finally, it is necessary to point out that this party also disagrees with the classification of the infringement committed. This is stated without prejudice to our position, corroborated by the expert report, that said content has not been posted on the Facebook page of the appearing party.

The Agency is changing its criteria, initially based on the premise that the face was recognizable, to indicate in the last notified resolution that it is sufficient for any data to be recognizable, but without identifying what that data is. We are faced with a double standard from the agency, where a presumption serves to sanction, but an expert proof does not serve to refute the accusation.

Delving into the principle of presumption of innocence, it is enshrined in Article 24 of the Spanish Constitution, as well as in Article 53 of Law 39/2015. It is a right inherent to the criminal legal system, which jurisprudence, by affinity, has extended to the sanctioning administrative procedure.

It is the Administration's responsibility to prove the certainty of the facts attributed to the appearing party, and not for the appearing party to demonstrate that something did not happen.

"There is no sufficient evidence of the charge, given that there is an entirely revenue-generating purpose in the present procedure, as otherwise it cannot be understood.

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Regarding the principle of presumption of innocence, our Constitutional Court has resolved the following regarding the evidentiary period: "(...) any insufficiency in the results of the evidence presented, freely evaluated by the sanctioning body, must translate into an acquittal pronouncement (...) [Judgment '76/90 of April 25 (FJ. 8º)]".

Our jurisprudence also requires that for circumstantial evidence to destroy the presumption of innocence, it must meet the following requirements: a) The circumstantial evidence must be based on "fully proven" facts. b) The constitutive facts of the infringement must be deduced rationally and reasoned and must be explicitly stated in the sanctioning resolution. This is maintained among others by the Constitutional Court rulings 229/1988; 107/1989; 24/1997 and 45/97. However, in the present case, the circumstantial evidence available to the agency is entirely undermined by the expert report

provided by this party, so a resolution should be issued agreeing to the acquittal of the appearing party.

LEGAL GROUNDS

I

Competence

By virtue of the powers recognized to each control authority by Article 58.2 of the GDPR and according to the provisions established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Procedures in case of possible violation of data protection regulations

Article 64 of the LOPDGDD establishes the following regarding the initiation of the procedure and duration:

1. When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an agreement of admission to processing, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the agreement of admission to processing was notified to the complainant. After that period, the interested party may consider their complaint accepted.

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2. When the procedure aims to determine the possible existence of an infringement of the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, and of this organic law, it shall be initiated by an initiation agreement, adopted on its own initiative or as a result of a complaint, which shall be notified to the interested party.

If the procedure is based on a complaint filed with the Spanish Data Protection Agency, prior to this, it shall decide on its admissibility, in accordance with the provisions of Article 65 of this organic law.

Once the complaint is admitted for processing, as well as in cases where the Spanish Data Protection Agency acts on its own initiative, there may be a preliminary investigation phase prior to the initiation agreement, which shall be governed by the provisions of Article 67 of this organic law.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. After this period, it shall expire, and consequently, the file shall be archived.

3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Data Protection Agency, after hearing the data controller or processor, may issue a warning, as well as order the data controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe. The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the file shall be archived. The provisions of the second and third paragraphs of section 2 of this article shall apply in this case.

4. The procedure may also be processed as a result of communication to the Spanish Data Protection Agency by the supervisory authority of another Member State of the European Union regarding the complaint filed with it, when the Spanish Data Protection Agency has the status of the main supervisory authority for processing a procedure in accordance with the provisions of Articles 56 and 60 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016. In

this case, the provisions of sections 1, 2, and 3 of this article shall apply.

5. The processing deadlines established in this article, as well as those for admission to processing regulated by Article 65.5 and the duration of the preliminary investigation actions provided for in Article 67.2, shall be automatically suspended when information, consultation, request for assistance, or mandatory opinion from an organ or body of the European Union or one or more supervisory authorities of the Member States must be obtained, in accordance with the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, for the time that elapses between the request and the notification of the opinion to the Spanish Data Protection Agency.

6. The processing deadlines referred to in the previous section may be suspended, by reasoned resolution, when it is essential to obtain information from a judicial authority.

According to the provisions of the transcribed article, the sanctioning procedure shall be understood as expired if, after more than twelve months from the date of the initiation agreement or, where applicable, from the draft initiation agreement, the resolution of the sanctioning procedure has not been issued and notified. In this case, the initiation agreement was signed on 11/17/23, so the maximum duration of the sanctioning procedure of twelve months would end on 11/17/23, with the procedure still pending completion, so it must be declared its expiration.

III

Prescription of the infringement

On the other hand, Article 95.3 of the aforementioned LPACAP states:

“The expiration shall not, by itself, produce the prescription of actions by the individual or the Administration, but expired procedures shall not interrupt the prescription period.

In cases where it is possible to initiate a new procedure because the prescription has not occurred, the acts and procedures whose content would have remained the same had the expiration not occurred may be incorporated into it. In any case, in the new procedure, the procedures for allegations, proposal of evidence, and hearing of the interested party must be fulfilled.”

Therefore, in accordance with the aforementioned, by the Director of the Spanish Data Protection Agency,

IT IS AGREED:

FIRST: TO DECLARE the EXPIRATION of the present sanctioning procedure, with number EXP202309575 (PS/00440/2023), proceeding to archive the actions.

SECOND: TO NOTIFY this Resolution to Ms. C.C.C.,

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may

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to file, optionally, a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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